

		alleges that Fisher ultimately changed her work schedule from day to nights because she refused to accept, entertain, and reciprocate his sexual comments and advances. The Court finds that changing Plaintiff's work schedule because of her refusal to entertain and reciprocate Defendant Fisher's repeated sexual comments and advances constitutes harassment that altered the conditions of her employment and created a work environment that qualifies as hostile or abusive to her because of her sex. Given the above, the Court finds that Plaintiff's action relates to the sexual harassment dispute and she may therefore "elect to render an arbitration agreement invalid or unenforceable 'with respect to' the plaintiff's 'case,' and not just the 'sexual harassment dispute.'" (Liu v. Miniso Depot CA, Inc. (2024) 105 Cal.App.5th 791, 803-804, review denied (Dec. 31, 2024), cert. denied (U.S., Oct. 6, 2025, No. 24-1215) 2025 WL 2823782.) The Motion to Compel Arbitration is DENIED. The parties' requests for judicial notice are GRANTED. The Court notes that the Court orders provided by the parties are merely persuasive authority. The Court exercises its discretion to consider the late-filed opposition. (Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker (2016) 2 Cal.App.5th 252, 262; Mackey v. Board of Trustees of California State University (2019) 31 Cal.App.5th 640, 657.) Plaintiff to give notice.
110	Prime Healthcare Services - Garden Grove, LLC vs. Optumcare Management, LLC	Motion to Seal Plaintiffs Prime Healthcare Services – Garden Grove LLC, et al. ("Plaintiffs") move pursuant to California Rules of Court, rule 2.550 to seal the following: (1) the

	23-01357480	Prime Hospitals’ Motion in Limine No. 2 to Exclude Evidence Regarding the Costs and Margins of Providing Services, (2) the Prime Hospitals’ Motion in Limine No. 3 to Exclude Evidence Regarding Patient Accounts Lacking Medical Necessity that Optum Failed to Identify in Discovery, (3) Omnibus Declaration of James L. Poth in Support of the Prime Hospitals’ Motions in Limine Nos. 1, 2, and 3, (4) Exhibits A; C; G-I; and K to the Omnibus Declaration of James L. Poth in Support of the Prime Hospitals’ Motions in Limine Nos. 1, 2, and 3, (5) Plaintiffs’ Opposition to Defendant’s Motion in Limine No. 7 to Exclude Expert Testimony of Chris Fritz, (6) Omnibus Declaration of James L. Poth in Support of Opposition to Optum’s Motions in Limine, and (7) Exhibits 8-12; 16; 22-24; 2-27; 31-32; 34, and 40 to the Omnibus Declaration of James L. Poth in Support of Oppositions to Optum’s Motions in Limine. Defendant OptumCare Management, LLC (“Defendant”) filed a notice of non-opposition. Under California Rules of Court, rule 2.550(d), the Court may order a record to be filed under seal if it finds that: (1) there exists an overriding interest that overcomes the right of public access to the record; (2) the overriding interest supports sealing the record; (3) a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored; and (5) no less restrictive means exist to achieve the overriding interest. (NBC Subsidiary (KNBC-TV), Inc. v. Superior Court (1999) 20 Cal. 4th 1178, 1218.) When disclosure of private and confidential financial information relating to the business operations of a party would interfere with that party’s ability to compete in the marketplace, a sealing order may be appropriate. (See Universal City Studios, Inc. v. Superior Court (2003) 110 Cal.App.4th 1273, 1286.)
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	Additionally, “[c]ourts have found that the protecting of trade secrets is an interest that can support sealing records in a civil proceeding.” (McGuan v. Endovascular Technologies, Inc. (2010) 182 Cal.App.4th 974, 988.) Here, the Court finds that each of the declarations, exhibits, and briefs at issue in the motion to seal either contain references to patient names and account numbers or proprietary information about contracting terms, reimbursement policies, methodologies, or business strategies. Plaintiffs requested sealings are narrowly tailored to those declarations, exhibits, and briefs that contain such private patient information or proprietary and sensitive business information and there is no public interest in this information that overrides the parties’ interests. The Motion is GRANTED. Plaintiffs to give notice
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